सत्यमेव जयते
भारत सरकार

भारत सरकार/ Government of India
वित्त मंत्रालय / Ministry of Finance
कार्यालय / Office of
प्रधान आयुक्त सीमाशुल्क
Commissioner of Customs
CSM International Airport
Mumbai – 400 099

भारतीय सीमा शुल्क

STANDING ORDER. 01/2024 dt. 25-06-2024

SUB.: Timely disposal of Adjudication cases by Adjudicating Authority in a transparent manner-reg.

Timely adjudication of cases is essential for early dispute resolution and justice delivery. Delay in adjudication leads to locked-up revenue as well as uncertainty for the passengers. The reasons for the delay have been studied and to obviate any delay and to ensure timely adjudication of all Show Cause Notices (SCNs) promptly, the following guidelines are prescribed.

I. It is the duty of the section issuing the SCN to deliver all the Relied Upon Documents (RUDs) to the noticee. The practice of asking the noticee to collect RUDs from the office must be stopped forthwith. The SCN and RUDs should be delivered to the noticee in terms of Section 153 of the Customs Act, 1962. As far as possible, the SCN and RUDs shall also be sent through email.

II. After the receipt of the Show Cause Notice (SCN) in the adjudication section, if written reply is received within 30 days of the issue of show cause notice, the file shall be put up before adjudicating authority immediately for fixing a Personal Hearing (PH). In case no written reply to the SCN is received within 30 days of the issue of show cause notice. The file shall be put up before adjudicating authority for fixing date for Personal Hearing and the said PH notice shall also advise that the written reply had not been received and should be submitted immediately.

III. In case of Non-receipt of written submission from any or all the noticee, the adjudicating authority must not wait in initiating the PH proceedings. Non receipt of written submissions or non-attending a PH cannot be a ground for non-adjudication for an unduly long period.

IV. Section 122A of the Customs Act, 1962 provides that "the Adjudicating authority may, if sufficient cause is shown at any stage of proceeding, grant time, from time to time, to the parties or any of them and adjourn the hearing for reasons to be recorded in in writing. However proviso to said sub-section (2) further provides that no such adjournment shall be granted more than three times to a party during the proceeding." So if any noticee does not attend PH and there is no communication from him in response to the PH notice issued, a copy of notice of personal hearing should be affixed on the notice board of the office as per Section 153 of the Customs Act, 1962. The notice of PH should also be sent through official email and record of email should be kept in the file. While

issuing notice for PH, the requirements of Section 153 of the Customs Act, 1962 should be met.

V. As far as possible each Adjudicating authority shall fix dates of personal hearing by keeping a time space in such a manner that even if there is need to grant three adjournments, the personal hearings should be concluded within 45 days of receipt of SCN and adjudication proceedings may be completed within three months from the date of receipt of notice. Efforts should be made by each adjudicating authority to complete the adjudication proceedings within 03 months of receipt of SCN.

VI. Each Adjudicating authority shall inform the dates of PH at least 02 weeks in advance to the noticee. The letter informing the PH may be issued by a registered post or speed post or courier with acknowledgment due. It may also be sent via email address as provided by the person to whom it is issued, or to the email-address available in any official correspondence of such person.

VII. The adjudication order should be issued within 01 month of the conclusion of the personal hearing in terms of Para 14.10 of CBEC Master Circular No. 1053/02/2017-CX issued vide F. No. 96/1/2017- CX.I dated the 10th March, 2017. In case it is not possible to follow the time limit, the reasons should be recorded in the adjudication order.

VIII. The Review section shall also maintain register where details of remanded back cases shall be maintained and the data shall be the reconciled from Adjudication section as well as the Commissioner (Appeal) office.

IX. The PH of remanded back cases should be initiated immediately as explained in point (ii) above. The date of receipt (i.e. Date of SCN in case of fresh adjudication) shall be taken as the date of order through which the said case is remanded back.

2. Further, any grievance can be brought to the notice of the Additional Commissioner, Adjudication cell at csmia-adjudication@gov.in.

25/6/24

(Nilank Kumar)
Commissioner of Customs.

Copy to:

1. The Chief Commisioner of Customs,
2. All the Pr. Commissioner / Commissioner of Customs, Zone-III, Mumbai
3. All Addl. / Joint Commissioner of Customs, CSMI Airport.
4. All Dy./Asstt. Commissioner of Customs, CSMI Airport.
5. Notice Board